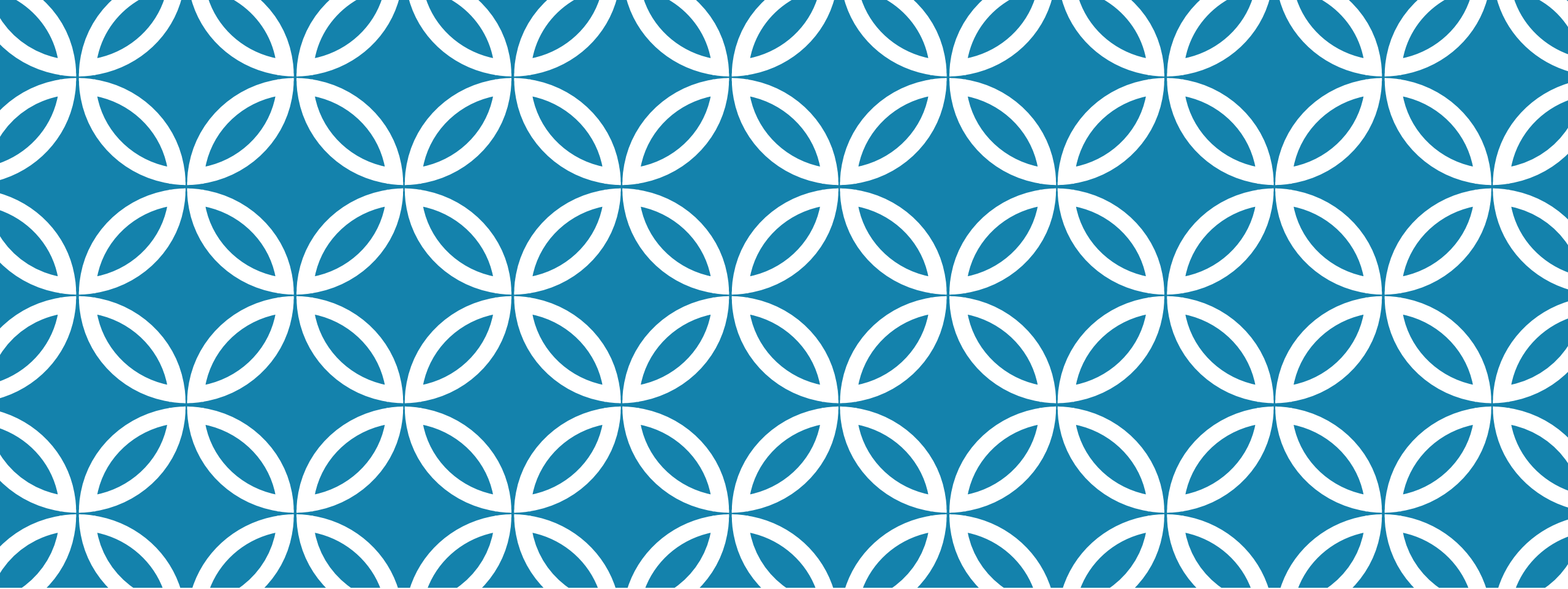
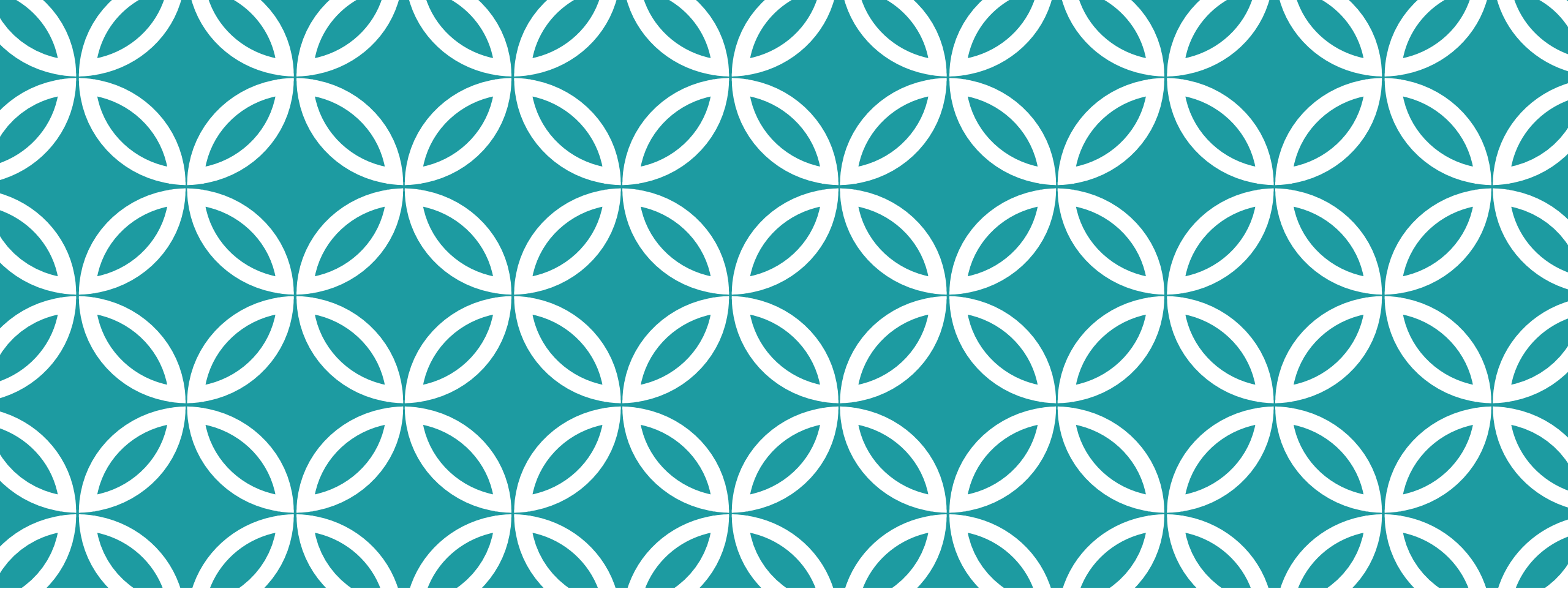




PUBP309: EDUCATION POLICY

Higher education Governance and Regulation

Shivakumar Jolad
FLAME University



HIGHER EDUCATION REGULATION



CONSTITUTIONAL AND REGULATORY FRAMEWORK

Constitution: Union List, State List and Concurrent List

Initial Allocation (1950 Constitution):

- **Education** placed under **State List** (Item 11)
- **Union List** included specific education-related provisions:
 - **Item 63–66** allowed Union intervention in select areas

Key Provision – Item 66 (Union List):

- Coordination & standard-setting in higher, technical, and scientific education
- Basis for creation of **regulatory bodies**:
 - **UGC, AICTE, NCTE, NAAC**
 - Professional councils: **MCI/NMC, BCI**

Union Role via Item 64 (Union List):

- Empowered to establish institutions of **national importance**, wholly or partly funded by GOI
- Led to establishment of:
 - **IITs, AIIMS, SPAs**, and others

Shift to Concurrent List (1976):

- **42nd Constitutional Amendment** moved education to **Concurrent List (Item 25)**
- Rationale:
 - Shared financial, administrative, and substantive responsibilities
 - Need for national coherence in technical, medical, and higher education

Item 25 (Concurrent List):

- Covers all forms of education: general, technical, medical, vocational, universities
- Still subject to Union powers under Items 63–66

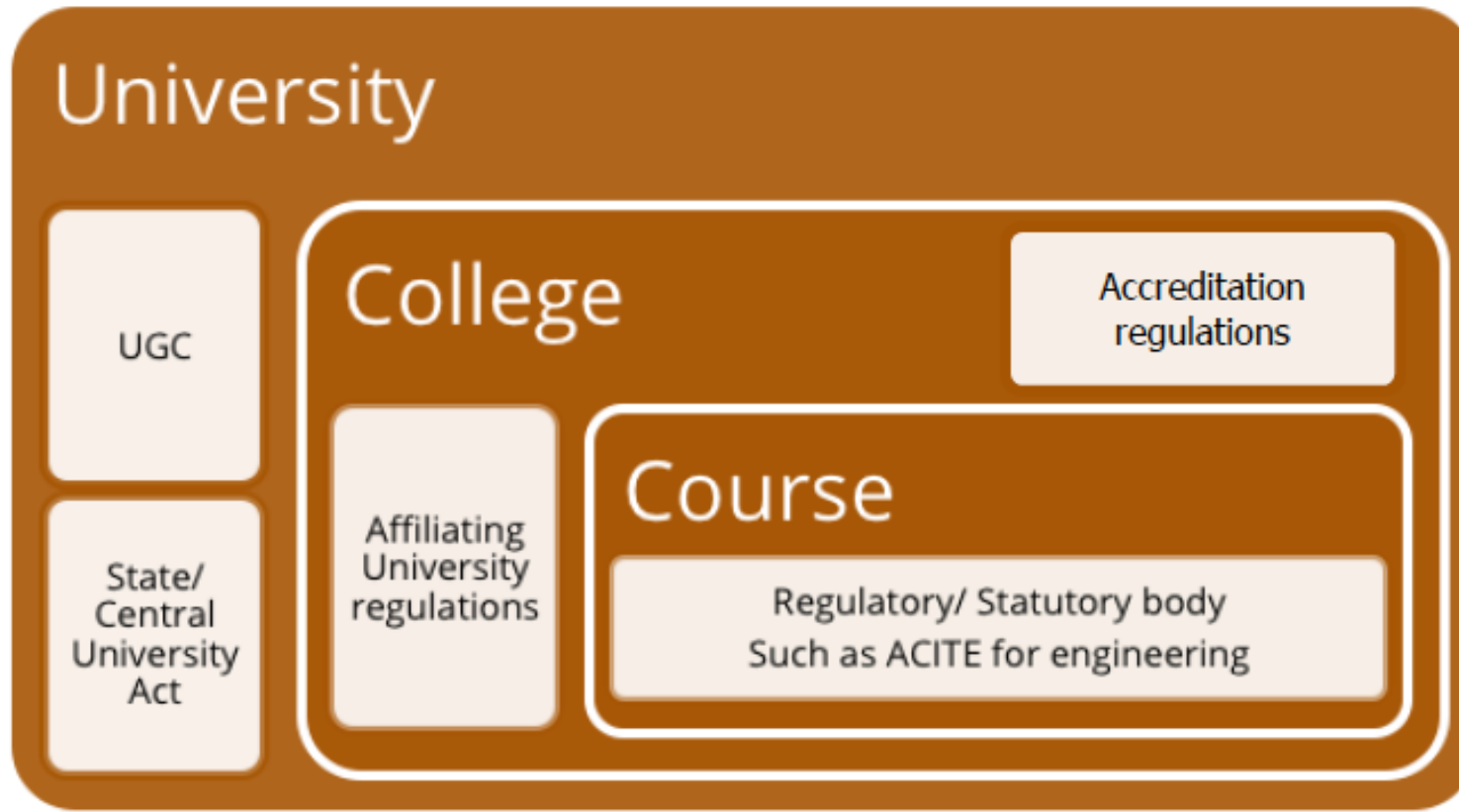
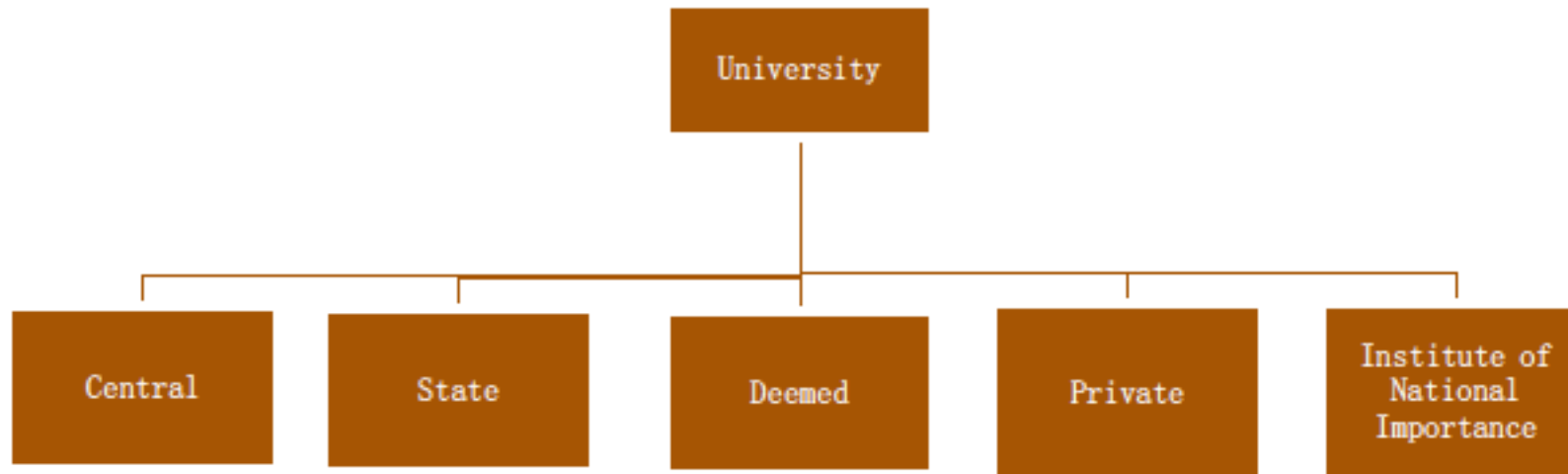


Figure 1.1: Supply chain of higher education

Regulatory Structure of Higher Education in India

Centre for Civil Society , 2014

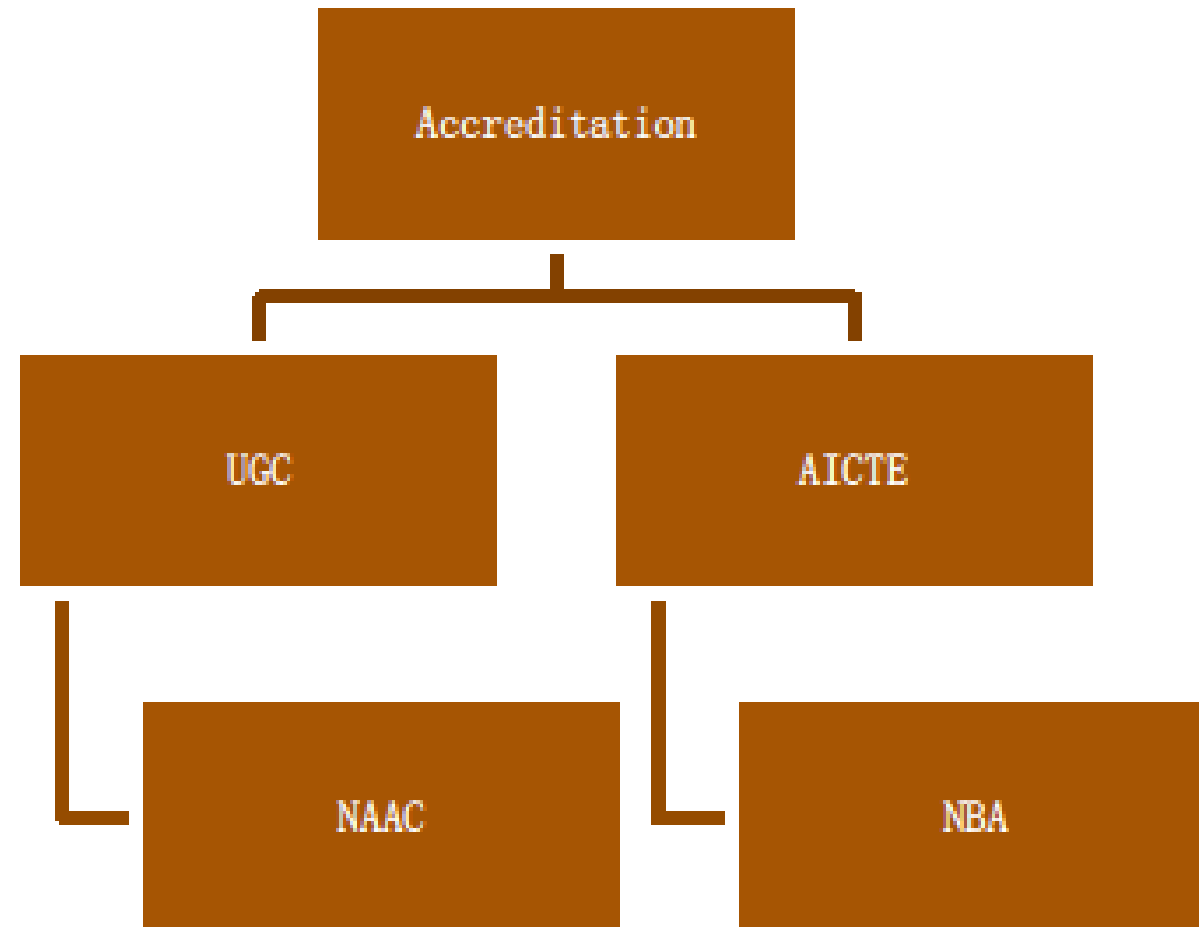
Figure 2.7: Types of universities



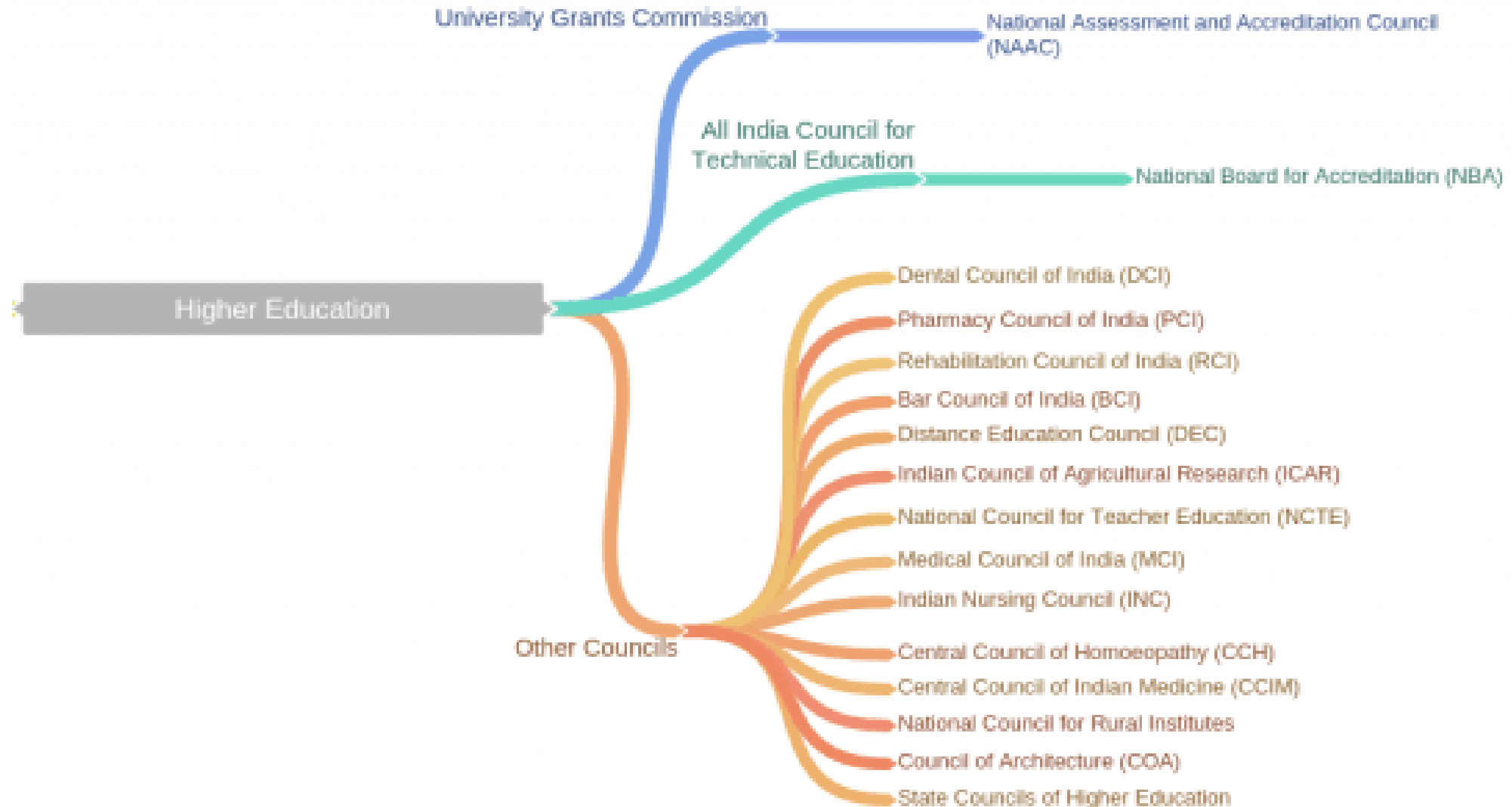
DEEMED-TO-BE-A- UNIVERSITY: UGC accords a deemed-to-be-a-university status to an institution. Upon receiving an application, the UGC committee forwards its recommendation to the Department of Higher Education,

MOE , hdeclares a university as deemed-to-be-a-university. Both government and private universities can be deemed universities. Gokhale Institute of Politics and Economics and Symbiosis International University are examples of government and private deemed universities, respectively.

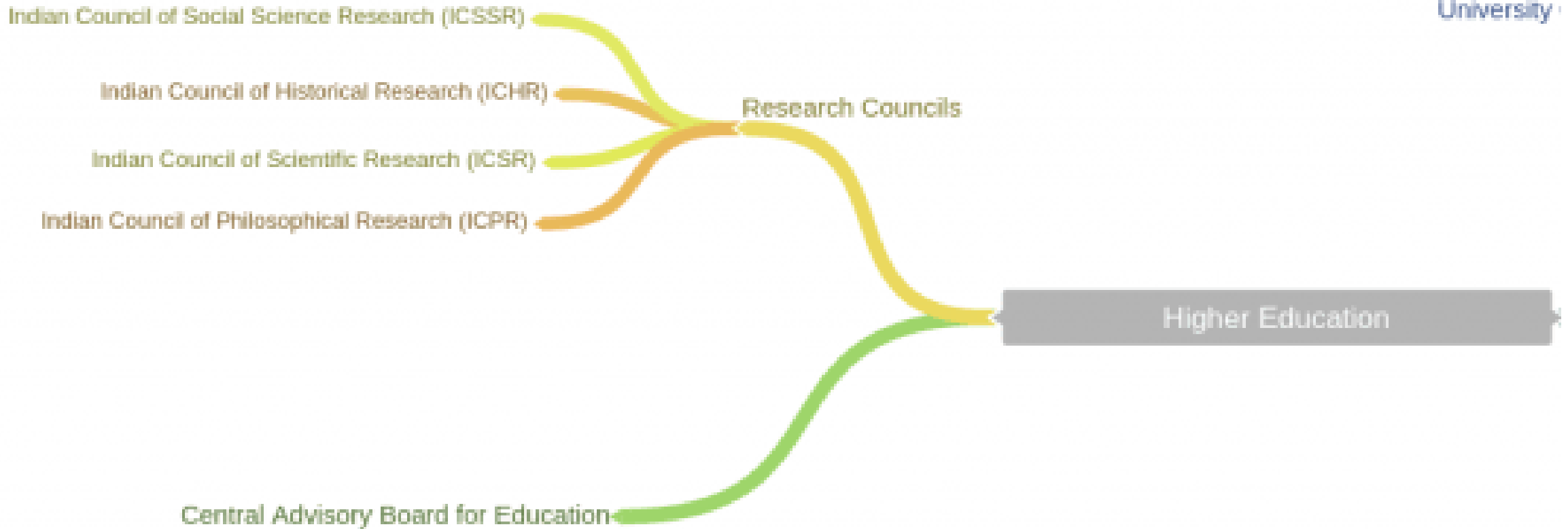
Figure 7.1: Accreditation in India



FLOWCHART OF THE HIGHER EDUCATION BUREAUCRACY



FLOWCHART OF THE HIGHER EDUCATION BUREAUCRACY



<https://thewire.in/culture/demystifying-higher-education-in-india-part-one>



Overlapping regulations at different layers – for opening a university/college; offering a course; getting accredited – which add to the time and cost of entering and operating in this sector;



High capital requirement to meet land norms, endowment fund and other such requirements.
Restrictions on the source of funding – only a Society or Trust or Section 25 company can be a sponsoring body.



Outdated but rigid requirements with respect to faculty qualification/library norms/channel of delivery which serve little purpose while adding significantly to costs;



Lack of clear and easily accessible documentation of the requirements for a private institution to be setup – thereby allowing for high rent-seeking opportunities;

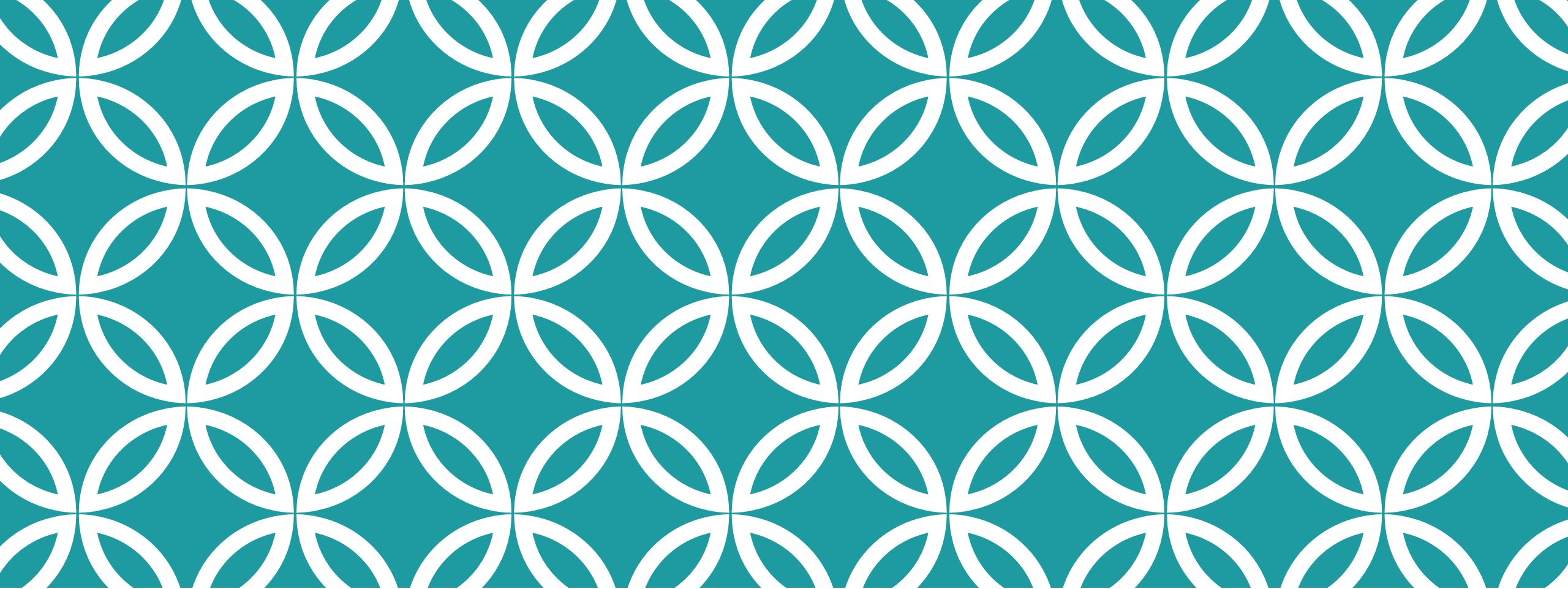


The accreditation limited to only two agencies, which do not have the capacity to process applications thereby resulting in large backlogs in accreditation;
No outcome-based recognition norms and instead saddle applicants with input-heavy-norms.

REGULATORY CHALLENGES

Regulatory Structure of Higher Education in India

Centre for Civil Societ



UGC ACT

UNIVERSITY EDUCATION COMMISSION

Sarvapalli Radhakrishnan (1888-1975) - Chairperson of UEC

Report Submitted in 1949

Report assessed the state of university education and made recommendations for its improvement in the newly independent India



UGC

University Grants Commission (UGC) was formally inaugurated by late Shri Maulana Abul Kalam Azad, the then Minister of Education, Natural Resources and Scientific Research on 28 December 1953.

Formally established only in November 1956 as a statutory body of the Government of India through an Act of Parliament for the coordination, determination and maintenance of standards of university education in India.

UGC MANDATE

Promoting and coordinating university education.

Determining and maintaining standards of teaching, examination and research in universities.

Framing regulations on minimum standards of education.

Monitoring developments in the field of collegiate and university education; **disbursing grants to the universities and colleges.**

Serving as **a vital link between the Union and state governments and institutions of higher learning.**

Advising the Central and State governments on the measures necessary for improvement of university education.

MAIN RECOMMENDATIONS

Structure of Universities

Faculty : Quality of faculty hiring

- professor, reader, lecturer and an instructor

Teaching Standards

(a) The Visitor,



(b) The Chancellor,



(c) The Vice-Chancellor,



(d) The Senate(Court),



(e) The Executive Council; (Syndicate)



(f) The Academic Council,



(g) The Faculties,



(h) The Boards of Studies,



(i) The Finance Committee,



(j) The Selection Committee.

THE UNIVERSITY GRANTS COMMISSION

ACT, 1956

(3 of 1956)

[3rd March, 1956]

An Act to make provision for the co-ordination and determination of standards in Universities and for that purpose, to establish a University Grants Commission.

BE it enacted by Parliament in the Seventh Year of the Republic of India as follows:-

CHAPTER I

PRELIMINARY

1. (1) This Act may be called the University Grants Commission Act, 1956.

Short title and commencement

(2) It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.

2. In this Act, unless the context otherwise requires-

Definitions

(a) "Commission" means the University Grants Commission established under section 4;

(b) "executive authority" in relation to a University, means the chief executive authority of the University (by whatever name called) in which the general administration of the University is vested;

(c) "Fund" means the Fund of the University Grants Commission constituted under section 16;

(d) "member" means a member of the University

Functions of the Commission

CHAPTER III

POWERS AND FUNCTIONS OF THE COMMISSION

12. It shall be the general duty of the Commission to take, in consultation with the Universities or other bodies concerned, all such steps as it may think fit for the promotion and co-ordination of University education and for the determination and maintenance of standards of teaching, examination and research in Universities, and for the purpose of performing its functions under this Act, the Commission may-

(a) inquire into the financial needs of Universities;

(b) allocate and disburse, out of the Fund of the Commission, grants to Universities established or incorporated by or under a Central Act for the maintenance and development of such Universities or for any other general or specified purpose;

(c) allocate and disburse, out of the Fund of the Commission, such grants to other Universities as it may deem ¹[necessary or appropriate for the development of such Universities or for the maintenance, or development, or both, of any specified activities of such Universities] or for any other general or specified purpose:

SETTING UP A PRIVATE UNIVERSITY IN INDIA

Requirements

Must be set up **through legislation in the State Assembly.**

Promoted only by a **not-for-profit entity** (trust, society, or Section 25 company).

Land and infrastructure norms (often 10–50 acres depending on state).

Endowment/corpus fund requirement deposited with government.

Minimum **academic infrastructure** (faculty, departments, library, labs).

Recognition from UGC and approval from relevant professional councils.

Mandatory **accreditation (NAAC/NBA)** within a specified time period.

Operational regulations

- Admissions based on **merit/entrance exams.**
- Fee structure sometimes **regulated by state committees.**
- **Private universities generally cannot affiliate other colleges.**
- Jurisdiction limited to **within the state** where established.
- Expansion (new campuses/programs) requires **regulatory approval.**

PRIVATE UNIVERSITY ACTS

MAHARASHTRA ACT No. II OF 2015.

(First published, after having received the assent of the Governor in the “Maharashtra Government Gazette”, on the 16th January 2015).

An Act to provide for establishment, incorporation and regulation of the FLAME University, for the development and advancement of higher education in the State and to provide for matters connected therewith or incidental thereto.

WHEREAS it is expedient to provide for establishment, incorporation and regulation of the FLAME University, Pune, for the development and advancement of higher education in the State and to provide for matters connected therewith or incidental thereto, for the purposes hereinafter appearing ; it is hereby enacted in the Sixty-fifth Year of the Republic of India as follows :

1. (1) This Act may be called the FLAME University Act, 2014.

Short title
and
commence-
ment.

•FLAME University has been established as a state private university vide the FLAME University Act 2014 (Maharashtra Act No. II of 2015) of the Government of Maharashtra. FLAME University is recognized by the University Grants Commission (UGC) under Section 2(f), and degrees awarded by the University are recognized under Section 22 of the UGC Act, 1956. It is Jain Minority Institution.

<https://www.flame.edu.in/about-flame>

3. (1) There shall be established a University by the name of the FLAME University, Pune. Incorporation
of University.

(2) The President, the Vice-Chancellor, the Governing Body, the Board of Management, the Academic Council and all other persons who may hereafter become such officers or members so long as they continue to hold such office or membership, are hereby constituted and declared to be a body corporate by the name of “the FLAME University, Pune”.

4. The objects of the University shall be as follows,— Objects of
University

(a) to provide learning, teaching, capacity, capability and skills development and research and development in higher and technical education, covering Liberal Arts, Humanities, Social Sciences, Life Sciences and Biotechnologies, Nano-Sciences and Technologies,

University
open to all.

6. (1) No citizen of India shall be excluded from any office of the University or from membership of any of its authorities, bodies or committees, or from appointment to any post, or from admission to any degree, diploma, certificate or other academic distinction or course of study on the ground only of sex, race, creed, class, caste, place of birth, religious belief or profession, political or other opinion.

University to
be self-
financed.

7. The University shall be self-financed and it shall not be entitled to receive any grant or other financial assistance from the Government.

Endowment
Fund

8. (1) The sponsoring body shall establish a permanent statutory fund to be called "the Endowment Fund" for the University which shall comprise of atleast five crore rupees, which may be increased *suo motu* but shall not be decreased.

11. The following shall be the officers of the University, namely :— Officers of University.

(i) the President ;

(ii) the Vice-Chancellor ;

(iii) the Deans of Faculties ;

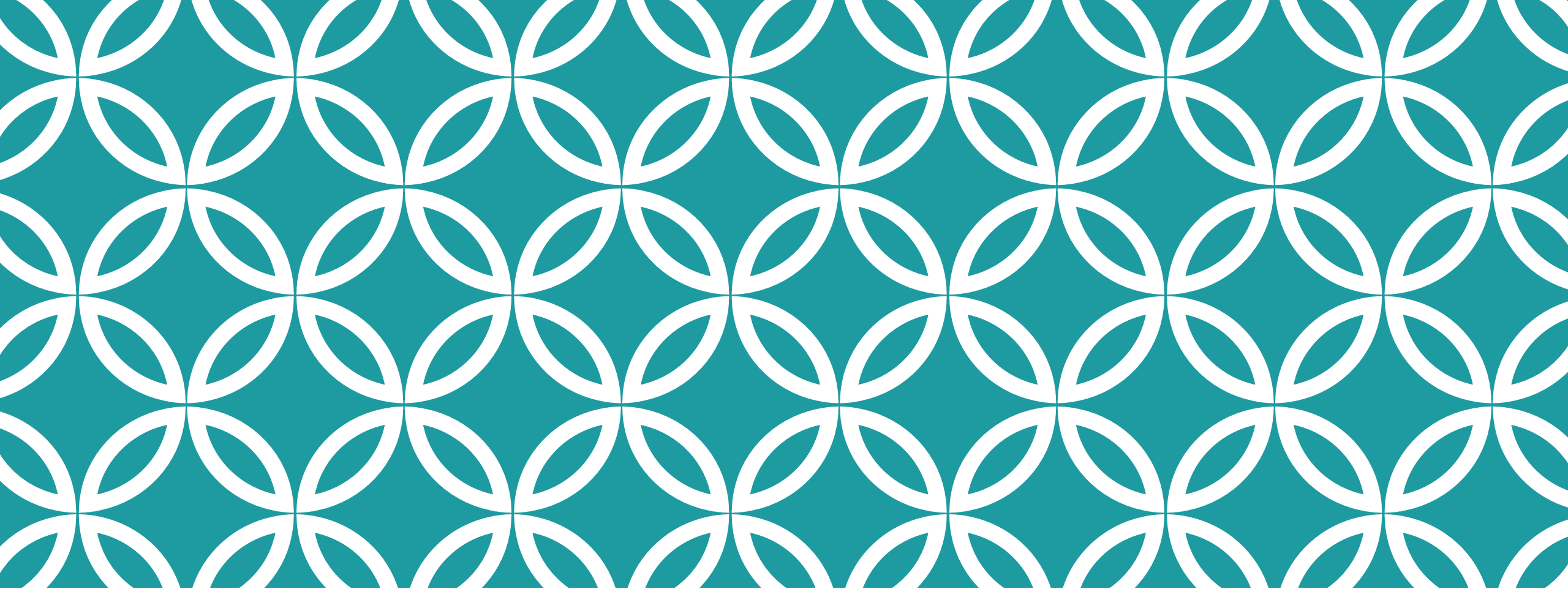
(iv) the Registrar ;

(v) the Chief Finance and Accounts Officer ;

(vi) the Controller of Examinations ; and

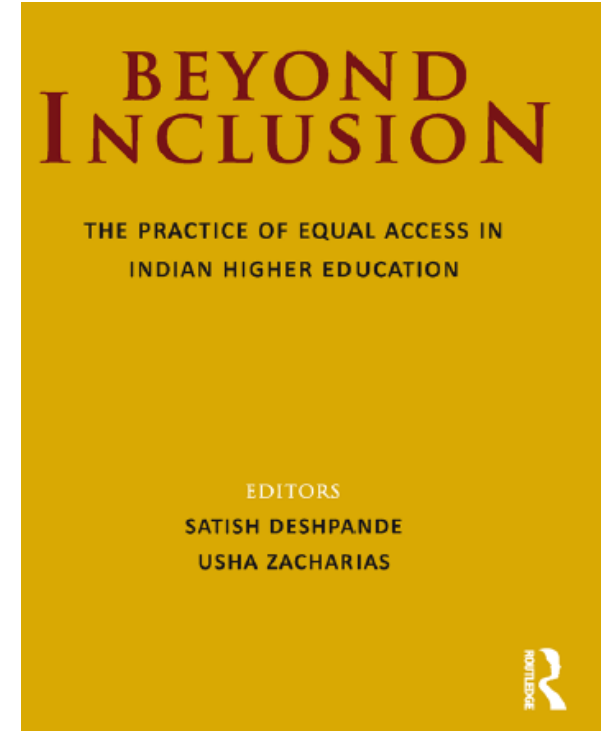
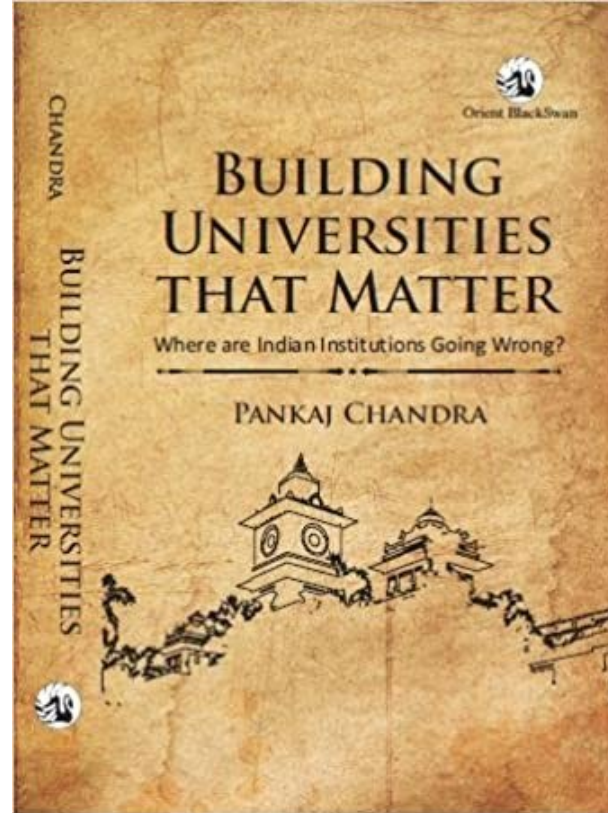
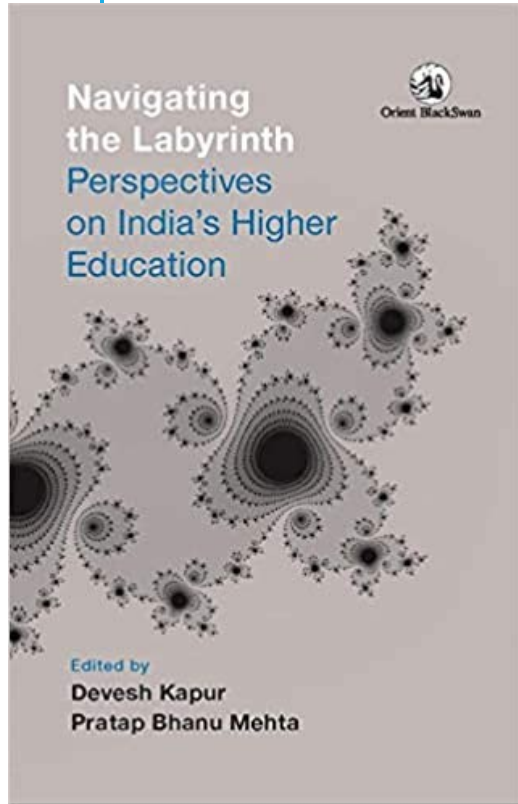
(vii) such other persons in the service of the University, as may be declared by the statutes, to be the the officers of the University.

12. (1) The President shall be appointed by the sponsoring body for President. a period of three years, with the approval of the Government in such manner as may be prescribed by the rules.



HIGHER ED — NEP 2020

EDITED BOOKS ON HIGHER ED IN INDIA



INDIA HIGHER EDUCATION REPORT

INDIA HIGHER EDUCATION REPORT 2015

Edited by
N. V. Varghese
and Garima Malik

INDIA HIGHER EDUCATION REPORT 2016 EQUITY

Edited by
N.V. Varghese
Nidhi S. Sabharwal
C.M. Malish

INDIA HIGHER EDUCATION REPORT 2017: Teaching, Learning and Quality in Higher Education

Edited by
N.V. Varghese
Anupam Pachauri
Sayantan Mandal

INDIA HIGHER EDUCATION REPORT 2018: Financing of Higher Education

Edited by
N.V. Varghese
Jinusha Panigrahi

GOVERNANCE AND MANAGEMENT OF HIGHER EDUCATION IN INDIA

Edited by
N.V. Varghese • Garima Malik

INDIA HIGHER EDUCATION REPORT

Chapter 9

Quality Universities and Colleges: A New and Forward Looking Vision for India's Higher Education System

Objective: Revamp the higher education system, create world class multidisciplinary higher education institutions across the country - increase GER to at least 50% by 2035.

Draft

National Education Policy 2019

As India moves towards becoming a true knowledge society and economy - and in view of the forthcoming fourth industrial revolution, where India aims to lead and where **an increasing proportion of employment opportunities will consist of skilled jobs of a creative and multidisciplinary nature** – more and more young Indians are aspiring to higher education

In order for it to attain these critical end goals, higher education must possess some fundamental attributes. It must provide students with broad-based multidisciplinary education and 21st century skills, while developing specialised knowledge with true disciplinary rigour. It should engage faculty and students with local communities and with real world problems, and function in collaborative, inclusive, and cross-disciplinary ways. Instead of solely mechanistic rote learning, colleges and universities must encourage active learners to develop the abilities of independent, logical, and scientific thinking, creativity and problem solving, and decision making. It must engage

into jobs that exist today, but that are likely to change or disappear after some years, is suboptimal and even counterproductive. The future workplace will demand critical thinking, communication, problem solving, creativity, and multidisciplinary capability. Single-skill and single-discipline jobs are likely to become automated over time. Therefore, there will be a great need to focus